



DECISION

Complaint No. : POS/476/ROK-10/(Khp)/2023

Name and address of the complainant : Mr. Ghulam Sarwar,
S/o Mahi Khan Islami, R/o Thari, Taluka Mirwah,
District Khairpur.

Name of the Agency Complained against : Market Committee Setharja

Name & Designation of Investigating Officer : **AHMED BAKSH GHUMRO,**
Consultant / Incharge, Regional Office Khairpur

Vetted by : **Dr. Syed Sharaf Ali Shah Advisor-J**

Subject : **DELAY IN PAYMENT OF SERVICE DUES TO THE
COMPLAINANT WHO RETIRED FROM SERVICE ON
31.05.2015.**

COMPLAINT

Mr. Ghulam Sarwar Islami, a retired Naib Qasid (BPS-02) of the Market Committee Setharja at Thari Mirwah, filed a complaint on 16.01.2023 wherein he stated that he attained the age of superannuation on 31.05.2015, but received his retirement order on 23.11.2018. He claimed to have continued performing his duties regularly until 23.11.2018. The complainant alleged that all pensionary dues, including monthly pension, were outstanding, and the department was not ready to finalize his case for service dues, causing him significant hardship. The complainant approached Chief Secretary, Sindh, & Secretary of Agriculture Department and other concerned authorities, who issued a letter to the Administrator of Market Committee Setharja at Thari Mirwah on 15.09.2021. However, the Chairman, Mr. Khadim Ali Ansari, and the Secretary of the Market Committee Setharja were reportedly unwilling to resolve his matter. They were allegedly pressuring the complainant to withdraw from all service benefits. Consequently, he therefore sought the intervention of this Institution.

PROCEEDINGS

02. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended to date), by condoning the delay in filing it.

03. After completing the necessary formalities, the matter was taken up with the Deputy Director of Agriculture Marketing Khairpur & Authorized Officer of Market Committee Setharja on 06.01.2023 for their comments / report. In response, the Chairman of Market Committee Setharja at Thari Mirwah reported on 20.02.2023 that the complainant had served as a Naib Qasid and retired on 31.05.2015 after attaining the age of superannuation. It was reported that due to an error in the service record, the complainant continued to serve until 23.11.2018 and received monthly salaries. The Chairman clarified that, as per the Market Committee Byelaws and an amendment issued by the Government of Sindh, Agriculture Supply & Prices Department on 21.03.2016 the complainant was not entitled to pensionary benefits, as he had attained the age of superannuation on 31.05.2015.

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04. The agency's report was shared with the complainant on 06.04.2023 for his rejoinder. The complainant filed his rejoinder on 13.07.2023 claiming that he had served honestly. He accused the Market Committee authorities of paying service dues to other retired employees who were favored, while denying the same to him. He emphasized that, as a poor person, he was facing significant hardships and urged the release of his service dues.

05. The matter was subsequently heard on 06.11.2023, 22.11.2023, 06.12.2023 and 07.12.2023 in the presence of both parties. Evidence presented by both sides included a photocopy of the service book, which mentioned the complainant's date of birth as 03.01.1959 and his CNIC as 09.12.1953. The Market Committee authorities also produced a copy of Decision No. POS/ROM/62/17/RM-91, dated 30.08.2019. Para-5 of this decision contained the following advice tendered by the Regulation Wing, SGA&CD, in consultation with the Law Department:

"Having examined this case, Law Department is of the opinion that retrospective cover of a law is not given unless mentioned specifically and in absence of such mention, that law is presumed to be effective from the date of issuance. Since the amendment in question did not specify about its effectiveness, either retrospectively or prospectively, it may be presumed to be effective from date of its issuance. Hence, the employees who retired prior to such amendment will not be covered there under."

Further, in such cases, the civil servant's date of birth recorded at the time of entry into service gets primacy. As per Rule 12-A of the Sindh Civil Servants (Appointment, Promotion, and Transfer) Rules 1974 the date of birth once recorded by a civil servant at the time of joining government service shall be final, and no alteration thereafter shall be permissible. Therefore, the complainant was advised to produce his original service book showing entries from his joining the service on 01.06.1976. Despite being given ample opportunity, he failed to do so. However, the complainant produced a photocopy of his service book showing the first entry on 30.11.2009, with his date of birth recorded as 03.01.1959 which appears to be **dubious** being interpolated / overwritten.

FINDINGS

06. Based on the above discussions, it is concluded that the complainant has failed to substantiate his claim for eligibility to pensionary benefits. Therefore, his complaint is liable to be rejected.

DECISION

07. The complaint is, therefore, hereby disposed of as rejected and consigned to record.

"Given under my hand and seal of office"



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz. PAS
Ombudsman, Sindh
Karachi, dated 03rd December, 2025